

## Manno Devi v. State of U.P.

Allahabad High Court · Division Bench · 14 December 2022 · Writ-C No. 16178 of 2022 · Writ-C No. 16178 of 2022 · **Writ disposed; prepaid connection permissible despite disputed premises.**

### HEADNOTE

Clause 4.4 of the U.P. Electricity Supply Code, 2005 permits a prepaid meter to a consumer living in a jhuggi, hutments or patti. Disputed title of the premises is not a bar to such a connection. Grant of the prepaid meter or connection does not create title. The writ seeking a connection was disposed of on that construction.

### FACTUAL SUMMARY

Manno Devi filed a writ seeking grant of an electricity connection at the premises she occupied. Counsel for the distribution licensee submitted that she was not entitled to a connection because the property was disputed. The Division Bench had earlier asked the electricity department to take instructions on whether a prepaid meter could still be given. On the adjourned date the Court considered clause 4.4 of the U.P. Electricity Supply Code, 2005, and disposed of the petition.

### REUSABLE CONSTRUCTIONS

1. Clause 4.4 permits a prepaid meter or electricity connection to a person living in a jhuggi, hutments or patti, including where the premises are disputed. ¶ 1
2. Grant of a prepaid meter or electricity connection does not create title over the premises. ¶ 1

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.4

prepaid connection on disputed or jhuggi premises

#### HOLDING

Clause 4.4 of the U.P. Electricity Supply Code, 2005 permits grant of a prepaid meter to a consumer living in a jhuggi, hutments or patti. A prepaid electricity connection may therefore be granted even where the premises are disputed. Grant of the prepaid meter or connection does not create any title over the property. ¶ 1

**FLAG** Court cited clause 4.4 generally for prepaid meters on jhuggi/hutments/patti premises, without identifying a sub-clause.

### PRINCIPLE TAGS

**clause-4.4-occupant-connection-on-indemnity-bond** Applied clause 4.4 to hold that a prepaid connection may be given to an occupant of disputed jhuggi/hutments/patti premises; the connection does not confer title. ¶ 1